

prevention of falls or drops of material. He has used falling-object protection equipment in roofing work elsewhere. (AF, 20.) Defendant disputes this because Premier held the contractual duty to be responsible for workplace safety under the Master Agreement.

In construing these facts, they do not establish Lennar retained control over the manner and means of Premier's securing of equipment and supplies in relation its roofing work. Lennar schedules the work of the subcontractors at the project; engages in safety inspections; and holds the right to ensure safety compliance. These actions are not tantamount to, nor do they even imply, control over the manner and means that Premier employees did the work. More specifically, there is no control over who Premier employees stored, used, or staged roofing material. Even if Lennar had the right to stop work in relation to safety violations, no facts are offered that it actively engaged in that control, which then might have affirmatively contributed to the roofing material rolling off the roof.

Ultimately, the Master Agreement provides that the subcontractor shall "furnish all labor, equipment, supervision and all other things necessary to timely and properly perform the Work in accordance with the Work Agreement(s), PO(s) and Scheduling Notice(s)" (Def. Exh. 7 [¶2.1].) Furthermore, the subcontractor "shall maintain competent and sufficient supervision of employees on the Job Site during all times that the Subcontractor is performing its Work." (Def. Exh. 7 [¶7].) Finally, the Master Agreement states that the subcontractor "shall be **solely responsible** for ensuring that its Work and/or the delivery of Goods is performed in a safe manner." (Def. Exh. 7 [¶8.4].) Moreover, "[n]othing herein shall be deemed to be an exercise of control by Lennar of Subcontractor's safety obligations." (*Ibid.*) "Subcontractor shall take all reasonable and necessary safety precautions with regard to the Work and the delivery of Goods, shall coordinate its safety precautions with other subcontractors, sub-subcontractors, and suppliers, and shall comply with all safety requirements, laws, regulations, rules or ordinances of any authority (governmental or otherwise) responsible for the safety of persons or property." (Def. Exh. 7 [¶8.4].)

Under all facts and evidence, the safety obligation in performing one's work rested with the subcontractor, not Lennar. Nothing offered supports that Lennar retained such control as to negate the application of the *Privette* doctrine.

17. *Aguirre v. Chaung*, Case No. CIVSB2516207
Defendant's Motion for Reconsideration of Sanctions
7/30/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **DENY**.

This motion relates the Court's ruling on April 14, 2026, on Plaintiff's motion to compel further responses to Request for Production, Set Two (RFP2). The Court's tentative found the motion moot because supplemental responses had been served after the motion was filed. The tentative also found that by serving supplemental responses, Defendant conceded that the initial responses were insufficient. In the Court's ruling, it found that while the motion was moot, sanctions in the amount of \$1,360 would be payable to Plaintiff in thirty days.

Now, although Defendant asserts he paid the sanctions, he seeks reconsideration pursuant to Section 1008(e) of the Code of Civil Procedure. Section 1008(e) provides relief upon submission of: (a) new or different facts, circumstances, or law; and (b) a declaration showing: (1) what application was made before, (2) when and to what judge; (3) what order or decisions were made; and (4) what new or different facts, circumstances, or law are claimed to be shown. Section 1008 is the exclusive means for modifying, amending, or revoking an order or for a renewal of a previous motion. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.)

Here, Defendant fails to raise new facts, circumstances, or law. In opposition to the underlying motion to compel, Defendant raised issues regarding the meet-and-confer efforts and also stated that he had voluntarily agreed to provide supplemental responses. He argued against the imposition of sanctions raising that he had voluntarily agreed to supplement responses to avoid the motion. Thus, the Court previously considered these arguments. Without any new fact, circumstance, or law, Defendant's motion must be denied.
